

**IN THE DISTRICT COURT OF APPEAL
FIRST DISTRICT, STATE OF FLORIDA**

Marc Moszkowski,
Appellant

Case 1D2025-2912
L.T. No.: 2018 CA 000543

v.

Deepgulf, Inc. and Toke Oil and
Gas, S.A.,
Appellees

**ON APPEAL FROM THE CIRCUIT COURT,
FIRST JUDICIAL CIRCUIT, IN AND FOR
ESCAMBIA COUNTY, FLORIDA**

APPELLEES' ANSWER BRIEF

Braden K. Ball, Jr.
Florida Bar No. 89000
Michael L. Wyatt
Florida Bar No. 124284
LITVAK BEASLEY WILSON & BALL, LLP
40 Palafox Place
Suite 300
Pensacola, FL 32502
Phone: (850) 432-9818
Fax: (850) 432-9830
Emails: braden@lawpensacola.com
michael@lawpensacola.com
mandrews@lawpensacola.com
BKBEService@lawpensacola.com

COUNSEL FOR APPELLEES

TABLE OF CONTENTS

TABLE OF AUTHORITIES.....	iii
PRELIMINARY STATEMENT	1
STATEMENT OF THE CASE AND OF THE FACTS	2
SUMMARY OF ARGUMENT.....	7
ARGUMENT	9
ISSUE I: APPELLANT’S INITIAL BRIEF IS FRIVOLOUS AND FILED IN BAD FAITH	9
A. APPELLANT’S FABRICATED AUTHORITIES.....	9
B. APPELLANT’S FRIVOLOUS AND BAD-FAITH ARGUMENTS 13	
1. Authentication of Exhibits	14
2. Preservation Claim.....	15
3. Court’s Reliance on Testimony.....	16
4. Other Frivolous Arguments.....	17
ISSUE II: APPELLANT HAS NOT MET HIS BURDEN TO DEMONSTRATE ERROR.....	18
A. THE BURDEN IS ON APPELLANT TO DEMONSTRATE ERROR	18

B. THE RECORD ON APPEAL IS INADEQUATE TO REVIEW THE TRIAL COURT’S FINDINGS OF FACT.....	19
ISSUE III: APPELLANT WAS NOT DENIED DUE PROCESS...	21
A. APPELLANT WAS NEVER IMPROPERLY DENIED INDIGENT STATUS	21
1. Procedure for Determining Civil Indigency	21
2. Issue Not Preserved	23
3. Testimony Regarding Indigency.....	24
B. THE TRIAL COURT DID NOT ABUSE ITS DISCRETION IN SANCTIONING APPELLANT FOR FAILING TO ATTEND MEDIATION OR THE PRETRIAL CONFERENCE.....	25
1. The order to attend mediation.....	26
2. The order to attend pretrial conference	27
3. No abuse of discretion	29
CONCLUSION	32
CERTIFICATE OF SERVICE	34
CERTIFICATE OF COMPLIANCE	35

TABLE OF AUTHORITIES

Cases¹

Achurra v. Achurra,

80 So. 3d 1080, 1083–84 (Fla. 1st DCA 2012)..... 12

Applegate v. Barnett Bank of Tallahassee,

377 So. 2d 1150 (Fla. 1979)..... 18

Baker v. Myers Tractor Services, Inc.,

765 So. 2d 149, 150 (Fla. 1st DCA 2000) 26, 29

Baxter v. Baxter,

397 So. 3d 826 (Fla. 1st DCA 2024)20, 25, 28

Binger v. King Pest Control,

401 So. 2d 1310 (Fla. 1981)..... 11

Canakaris v. Canakaris,

382 So. 2d 1197, 1203 (Fla. 1980) 31

City of Jacksonville v. Naegele Outdoor Advert. Co.,

634 So. 2d 750, 753 (Fla. 1st DCA 1994) 11

¹ Appellant cites four cases in the Initial Brief that Appellees were unable to locate and that Appellees believe do not exist. These are listed in the table on pp. 8–11 of this Answer Brief rather than in the Table of Authorities.

<i>Cyrus v. Cyrus,</i>	
324 So. 3d 590 (Fla. 1st DCA 2021)	15
<i>De Groot v. Sheffield,</i>	
95 So. 2d 912, 916 (Fla. 1957)	11
<i>F.D. v. Dep't of Children & Families,</i>	
413 So. 3d 994 (Fla. 3d DCA 2025)	26
<i>F.M. v. Dep't of Child. & Fams.,</i>	
95 So. 3d 378 (Fla. 3d DCA 2012)	30
<i>Goya v. Hayashida,</i>	
418 So. 3d 652 (Fla. 4th DCA 2025)	12, 13
<i>Green v. Cottrell,</i>	
204 So. 3d 22, 27 (Fla. 2016)	10
<i>Heldmenmuth v. Groll,</i>	
128 So. 3d 895, 898–99 (Fla. 4th DCA 2013)	11
<i>Kohn v. City of Miami Beach,</i>	
611 So. 2d 538 (Fla. 3d DCA 1992)	13
<i>Levine v. Dade County,</i>	
442 So. 2d 210, 213 (Fla. 1983)	9
<i>Lewis v. Heartsong, Inc.,</i>	
559 So. 2d 453, 454 (Fla. 1st DCA 1990)	10

<i>Massey v. Charlotte County,</i>	
842 So. 2d 142 (Fla. 2d DCA 2003).....	11
<i>Mata v. Avianca Inc.,</i>	
678 F. Supp. 3d 443, 461 (S.D.N.Y. 2023)	13
<i>Mercer v. Raine,</i>	
443 So. 2d 944 (Fla. 1983).....	26, 30, 31
<i>Morgan v. Pake,</i>	
611 So. 2d 1315, 1316 (Fla. 1st DCA 1993	19, 20, 21
<i>Stanley v. Berry,</i>	
933 So. 2d 1219 (Fla. 1st DCA 2006)	23
<i>Stueber v. Gallagher,</i>	
812 So. 2d 454, 457 (Fla. 5th DCA 2002).....	13
<i>Walker v. Figarola,</i>	
59 So. 3d 188, 190 (Fla. 3d DCA 2011).....	10
<i>Walker v. McDonough,</i>	
967 So. 2d 1134 (Fla. 2nd DCA 2007).....	24
<i>Walters v. State,</i>	
994 So. 2d 1230, 1233 (Fla. 2d DCA 2008)	10

Statutes

Fla. Stat. § 57.081	22, 27, 29
Fla. Stat. § 57.082	22, 23, 24, 27, 29
Fla. Stat. § 768.28	9
Fla. Stat. § 90.956	14
Flat. Stat. § 90.901	14

Rules

Fla. R. App. P. 9.045	35
Fla. R. App. P. 9.200	19
Fla. R. App. P. 9.210(b)	12, 35
Fla. R. App. P. 9.410(a)	9, 12, 18
Fla. R. Civ. P. 1.700	26

PRELIMINARY STATEMENT

Appellant, Marc Moszkowski, was the defendant in the trial court. This brief will refer to Appellant as such, as “Defendant,” or by proper name.

Appellees, Deepgulf, Inc. and Toke Oil and Gas, S.A., were the plaintiffs below. This brief will refer to Appellees as such, as the “Plaintiffs,” or by their corporate names.

The record on appeal consists of one volume, which will be referenced as the “Record on Appeal.” Citations to the Record on Appeal will be “R.” followed by any appropriate page number, all in parentheses.

Citations to Appellant’s Initial Brief will be “I.B.” followed by any appropriate page number, all in parentheses.

Absent an indication to the contrary, typographical emphasis is contained within the original quotations.

Rather than responding to Appellant’s Initial Brief point by point, Appellees have grouped Appellant’s thirteen “points,” and Appellees will address them thematically.

STATEMENT OF THE CASE AND OF THE FACTS

On April 3, 2018, DeepGulf, Inc. and its wholly owned subsidiary, Toke Oil And Gas, S.A. filed a lawsuit against Appellant, Marc Moszkowski; Mr. Moszkowski was a director and the president of DeepGulf, Inc. (R. 36–69). The complaint, as ultimately amended, brought counts against Mr. Moszkowski for injunctive relief, breach of non-competition agreement, two counts of civil theft, two counts of conversion, fraudulent misrepresentation, declaratory relief, accounting, and breach of contract. (R. 145–81).

On June 25, 2018, the case was removed to federal court. (R. 140–42). On May 5, 2021, based upon a lack of subject matter jurisdiction, the United States District Judge issued an Order Remanding Case to State Court based on the Eleventh Circuit Court of Appeals' order for the same. (R. 143).

The case continued its course in state court. On February 20, 2025, Appellant filed an answer and counterclaim with counts against Appellees for accounting, breach of contract, work and labor done, a second count of breach of contract, fraud based on promise to pay, and fraudulent misrepresentation. (R. 1936–59).

On April 3, 2025, the parties appeared via Zoom for a Case Management Conference. (R. 2346). At the hearing, the trial court ordered the parties to participate in mediation and set the case for an in-person pretrial conference on June 10, 2025 and an in-person bench trial on June 17 and 18, 2025. *See id.* At the Case Management Conference, Appellant, who resides in a villa in the south of France, argued that he did not have the means to pay for mediation or travel to Florida (and that his health also prevented the latter). (R. 2347.) The trial court heard Appellant's sworn testimony concerning his finances and his health, and Appellant testified that he would travel to Florida if Appellees bore the expense, contradicting his statement that he could not travel for health reasons. *Id.* The trial court, having heard and considered Appellant's testimony, denied Appellant's *ore tenus* motion for relief from the costs of mediation and to appear virtually at the pretrial conference and trial. *Id.* The trial court also cautioned the parties that a failure to attend mediation or appear at the pretrial conference could result in sanctions, "including striking pleadings, entry of a default, and/or dismissal of the action." (R. 2347–48).

Subsequently, Appellant filed a series of notices, declarations, addenda, and motions seeking relief from the trial court's order to attend mediation and appear in person for the pretrial conference. (R. 2198–2334; 2358–2457). On April 16, 2025, Plaintiffs filed a Motion for the Court to Enter an Order to Show Cause concerning Appellant's actions that evidenced his refusal to participate in mediation. (R. 2511–18). On April 17, 2025, the trial court entered an order denying Appellant's motions and ordering that if Appellant failed to attend mediation, "he is hereby ordered to attend a hearing in-person on June 10, 2025...to show cause why he should not be held in contempt of court for failure to appear at mediation.... The Court may consider imposition of all available sanctions including striking of pleadings and/or entry of a default." (R. 2533).

Appellant did not pay the required deposit for the mediator that Plaintiffs proposed, nor did Appellant propose a mediator who does not require a deposit. (R. 2532–33). The Record on Appeal bears no indication that Appellant ever submitted an Application for Determination of Civil Indigent Status to the clerk of court for relief from the costs of mediation, as would be required by Florida Statutes. (On November 18, 2025, Appellant filed such an application for relief

from the appellate filing fee, but Appellant filed no such application until after the trial court entered final judgment. (R. 4387).)

On June 10, 2025, Appellant did not appear at the hearing on the order to show cause or the pretrial conference. On June 12, 2025, the trial court heard testimony from Rustin Howard concerning Appellant's significant personal and real property, including a 395-acre villa in France, and the court entered an order that struck Appellant's pleadings and entered a default against him. (R. 3653).

On June 17, 2025, the trial court conducted a bench trial on damages, finding for Plaintiffs (except for one count of civil theft). (R. 4225). On September 3, 2025, the trial court entered its Final Judgment. (R. 4225–32). On September 8, 2025, the clerk of the lower tribunal recorded the order in the public records of Escambia County. (R. 4225–32) Also on September 8, 2025, Appellant filed a motion for rehearing. (R. 4233–59). On September 29, 2025, the trial court denied the motion for rehearing. (R. 4347).

On October 27, 2025, Appellant filed the Notice of Appeal. (R. 4361).

There are no transcripts in the Record on Appeal of any of the hearings mentioned in the Initial Brief or this Answer Brief.

Furthermore, there is no transcript of the trial in the Record on Appeal.

SUMMARY OF ARGUMENT

Appellees urge the Court to strike Appellant's Initial Brief and dismissing the proceedings because Appellant has submitted fabricated case law and advanced frivolous, bad-faith arguments. Appellant cites nineteen cases in the Initial Brief: four of them are completely fabricated, and eleven of them have no relevance to Appellant's stated holding. Additionally, many of Appellant's arguments rely on flagrant misrepresentations of the record and are otherwise advanced in bad faith.

In the Initial Brief, Appellant argues repeatedly that the trial court's findings of fact do not rest upon competent, substantial evidence. Appellant, however, has not provided transcripts of the hearings or the trial, and the record is inadequate to review the matters Appellant raises on appeal.

Finally, Appellant was not denied due process. The trial court did not abuse its discretion in ordering the parties to participate in mediation or to attend the pretrial conference, and the trial court fully considered Appellant's claimed reasons for not being able to participate in mediation or attend the pretrial conference. When Appellant failed to comply with the trial court's orders, the trial court

did not abuse its discretion in striking Appellant's answer, affirmative defenses, and counterclaims and entering a default.

ARGUMENT

ISSUE I

APPELLANT'S INITIAL BRIEF IS FRIVOLOUS AND FILED IN BAD FAITH

This section of the argument is relevant to Appellant's entire Initial Brief, but section II(B)(4) "Other Frivolous Arguments" specifically addresses Appellant's Point III (I.B. 39), Point XI (I.B. 64), and Point XII (I.B. 69).

Appellees urge the Court to strike Appellant's Initial Brief and dismiss the proceedings under Fla. R. App. P. 9.410(a) because the Initial Brief is both "frivolous" and "in bad faith." It relies on fabricated case law and fictional claims of fact.

A. APPELLANT'S FABRICATED AUTHORITIES

Appellant's Initial Brief cites nineteen cases (I.B. 9), four of which are completely fabricated and eleven of which do not support the holding Appellant claims. The following table summarizes the Appellant's erroneous citations:

Location	Case Cited	Appellant's Cited Holding	Actual Holding
(I.B. 25)	<i>Levine v. Dade County</i> , 442 So. 2d 210,	Trial court may not rely on matters outside the record.	Plaintiffs under section 768.28(6), Florida Statutes, must notice

	213 (Fla. 1983)		Department of Insurance. <i>Id.</i> at 212.
(I.B. 28)	<i>Walters v. State</i> , 994 So. 2d 1230, 1233 (Fla. 2d DCA 2008)	Arguments and assertions of counsel are not evidence.	Written orders may not simply deny criminal defendant's motions without findings, explanations, or notice of right to appeal. <i>Id.</i> at 1230
(I.B. 29)	<i>Lewis v. Heartsong, Inc.</i> , 559 So. 2d 453, 454 (Fla. 1st DCA 1990)	Trial court may not base findings on unsworn statements.	Trial court abused discretion by not allowing an amendment to complaint. <i>Id.</i> at 455.
(I.B. 29)	<i>Walker v. Figarola</i> , 59 So. 3d 188, 190 (Fla. 3d DCA 2011)	Trial court may not base findings on materials not in evidence.	Complaint failed to state cause of action for conversion or civil theft. <i>Id.</i> at 190–91.
(I.B. 29)	<i>Jackson v. Household Fin. Corp.</i> , 73 So. 3d 325, 328–29 (Fla. 1st DCA 2011)	Civil theft requires felonious intent.	This case does not exist.
(I.B. 34)	<i>Green v. Cottrell</i> , 204 So. 3d 22, 27 (Fla. 2016)	Reversal required where court fails to conduct analysis to resolve a dispositive defense.	Burden fell on jail employees to demonstrate inmate had not exhausted administrative remedies. <i>Id.</i> at 31.

(I.B. 34)	<i>Heldmenmuth v. Groll</i> , 128 So. 3d 895, 898–99 (Fla. 4th DCA 2013)	Absence of findings addressing accrual precludes meaningful appellate review.	Amended complaint adequately stated a cause of action for civil theft.
(I.B. 39)	<i>De Groot v. Sheffield</i> , 95 So. 2d 912, 916 (Fla. 1957)	Conversion requires proof of ownership.	Order of Civil Service Board could not be collaterally attacked in mandamus proceeding. <i>Id.</i> at 916–17.
(I.B. 46)	<i>Binger v. King Pest Control</i> , 401 So. 2d 1310 (Fla. 1981)	Party must have a fair opportunity to adversarially test evidence.	Trial court may exclude testimony of undisclosed witness. <i>Id.</i> at 1313–14.
(I.B. 46)	<i>Massey v. Charlotte County</i> , 842 So. 2d 142 (Fla. 2d DCA 2003)	Trial court findings must rest on competent, substantial evidence.	Due process requires a predeprivation or postdeprivation process when imposition of a lien requires fact findings. <i>Id.</i> at 143.
(I.B. 52)	<i>City of Jacksonville v. Naegele Outdoor Advert. Co.</i> , 634 So. 2d 750, 753 (Fla. 1st DCA 1994)	Findings may not rest on speculation.	Temporary injunction only proper in certain well-defined circumstances. <i>Id.</i> at 752–753.
(I.B. 54)	<i>Uniweld Prods., Inc. v. Polychemical</i>	Equitable relief requires competent,	This case does not exist.

	<i>Servs, Inc.</i> , 541 So. 2d 1311, 1314 (Fla. 4th DCA 1989)	substantial evidence.	
(I.B. 54)	<i>Meyers v. Shorelind Found., Inc.</i> , 17 So. 3d 920, 923 (Fla. 4th DCA 2009)	Evidence must support underlying claim for equitable relief.	This case does not exist.
(I.B. 54)	<i>Achurra v. Achurra</i> , 80 So. 3d 1080, 1083–84 (Fla. 1st DCA 2012)	Due process requires evidentiary hearing.	Injunction cannot be issued without being based on any evidence of record. <i>Id.</i> at 1083.
(I.B. 54)	<i>Pino v. Guetzloe</i> , 995 So. 2d 532, 539 (Fla. 5th DCA 2008)	Trial court's findings must be based on competent, substantial evidence.	This case does not exist.

By filing a brief replete with fake citations, Appellant violated Fla. R. App. P. 9.210(b), and the court should accordingly sanction Appellant. *See Goya v. Hayashida*, 418 So. 3d 652, 656 (Fla. 4th DCA 2025) (“We have the authority to sanction Wife under Florida Rule of Appellate Procedure 9.410(a) for failure to comply with Florida Rule of Appellate Procedure 9.210(c)” for citing fake cases throughout Answer Brief.). There is real harm that comes from stuffing a brief

with fabricated authorities: These fake cases threaten the integrity of the proceedings, they sabotage judicial economy, and they waste “the opposing party’s ‘time and money in exposing the deception.’” *Id.* (citing *Mata v. Avianca Inc.*, 678 F. Supp. 3d 443, 461 (S.D.N.Y. 2023)).

That Appellant filed his Initial Brief *pro se* is of no legal moment. “In Florida, *pro se* litigants are bound by the same rules that apply to counsel.” *Stueber v. Gallagher*, 812 So. 2d 454, 457 (Fla. 5th DCA 2002). “[I]t is a mistake to hold a *pro se* litigant to a lesser standard than a reasonably competent attorney.” *Kohn v. City of Miami Beach*, 611 So. 2d 538, 539 (Fla. 3d DCA 1992). If for no other reason, the Court ought to strike the brief and dismiss the proceedings on these grounds alone.

B. APPELLANT’S FRIVOLOUS AND BAD-FAITH ARGUMENTS

Appellant repeatedly and flagrantly misrepresents the record on appeal. Without citing to any trial testimony, Appellant erroneously claims that the trial court admitted unauthenticated exhibits and relied solely upon those exhibits to make its findings of fact. This representation flatly contradicts the plain text of the Final Judgment.

Appellant also argues that he timely objected to the introduction of evidence, even though he did not attend the trial. (I.B. 74–75).

1. Authentication of Exhibits

Appellant argues several times that Plaintiffs' exhibits were not properly authenticated or even admitted into evidence. See (I.B. 19) (“[PX-13] was not authenticated, admitted through testimony.”); (I.B. 20) (“PX-15 was not authenticated, admitted through testimony, or supported by underlying records.”); (I.B. 21) (“PX-17 was not authenticated and does not establish wrongful dominion over identifiable property belonging to DeepGulf.”); (I.B. 22) (“These documents were never authenticated...”); (I.B. 26) (“PX-15 was never disclosed or authenticated...”); (I.B. 28) (“[PX-13] was never authenticated or admitted through testimony.”); (I.B. 37) (“PX-15 was never authenticated and was not shown to be a business record...”); (I.B. 39) (“[T]he only exhibits cited by the trial court (PX-15 and PX-17) were undisclosed, unauthenticated, and factually insufficient...”); (I.B. 48) (“PX-15 was never authenticated under sections 90.901–90.956, Florida Statutes, and no testimony established its accuracy, reliability, or derivation...”). Appellant sets forth some half-dozen

other iterations of this argument throughout the Initial Brief. *See* (I.B. 50, 53, 72, 74, 76).

Each entrance of this argument into Appellant's Initial Brief is speculative fiction. Appellant does not cite to a trial transcript when the exhibits were entered, because there is no transcript. Appellant failed to provide a transcript of the proceedings, and, as will be argued in more detail in "Issue II" *infra*, "[i]t is Appellant's responsibility to ensure that an adequate record to resolve the issues raised on appeal is provided to the appellate court." *Cyrus v. Cyrus*, 324 So. 3d 590, 591 (Fla. 1st DCA 2021). The larger issue, though, is that *Appellant did not attend the trial* and has no factual basis to claim, against the trial court's admission of the exhibits, that the exhibits were not authenticated. These arguments are frivolous and made in bad faith.

2. Preservation Claim

Appellant's Preservation claim is likewise facially false. Appellant claims to have made timely objections to the admissibility of Plaintiffs' exhibits (I.B. 74), yet Appellant did not attend the trial and claims that he was only given access to the exhibits "months later, after Appellant requested the exhibits cited in Plaintiffs'

proposed Final Judgment.” (I.B. 37). Under these circumstances, an objection to the admissibility of the exhibits could not possibly have been either timely made nor adequately preserved.

3. Court’s Reliance on Testimony

One of Appellant’s most egregious, repeated, and mendacious claims is that the trial court relied only upon Plaintiffs’ exhibits in reaching findings of fact and conclusions of law. This argument is flatly contradicted by the Record on Appeal. Appellant argues that “the court found Appellant liable for conversion of \$959,764.22 based exclusively on PX-15 and PX-17,” and “the court found Appellant liable for civil theft of \$345,000 based solely on PX-13, a pre-suit demand letter.” (I.B. 26).

Appellant’s argument is an extravagant misrepresentation of the Record on Appeal. The lower court repeatedly cited the trial testimony of Rustin Howard in reaching its findings of fact. *See* (R. 4225–28). Rather than provide a transcript of that testimony and contest its sufficiency, Appellant erroneously argues in his Initial Brief that the “Final Judgment cites no testimony [in] establishing” its findings of fact for conversion.” (I.B. 38). This is a bad faith

argument that appears to intentionally misrepresent the Record on Appeal.

4. Other Frivolous Arguments

In Appellant's "Point III" (I.B. 39), Appellant seeks to relitigate the jurisdictional holding from the United States 11th Circuit Court of Appeals and argues that Plaintiff Toke Oil and Gas S.A.'s "purported foreign status was not supported by evidence in the record" before the 11th Circuit. (I.B. 40). This argument is frivolous because the Court in the case at bar has no jurisdiction to overturn a decision of the U.S. 11th Circuit Court of Appeal.

In Appellant's "Point XI," he argues without any support or tether to precedent that an order for injunctive relief and accounting must be "reciprocal." (I.B. 65). This argument is the main thrust of Appellant's "Point XII" as well: "Granting unilateral accounting and turnover [i.e., injunctive relief] in these circumstances inverted equitable doctrine by rewarding concealment and penalizing the party denied access to core corporate records." (I.B. 71). This argument that a court must order reciprocal accounting or reciprocal injunctive relief has no basis in law or equity.

In sum, Appellees urge the Court to strike Appellant's Initial Brief and dismiss the proceedings under Fla. R. App. P. 9.410(a). Appellant cites fictitious cases, knowingly misrepresents the facts, and argues a litany of frivolous issues. Appellant's *pro se* advocacy does not excuse his abuse² of the judicial system.

ISSUE II

APPELLANT HAS NOT MET HIS BURDEN TO
DEMONSTRATE ERROR BELOW

A. THE BURDEN IS ON APPELLANT TO DEMONSTRATE ERROR

Fundamental to the appellate process is the principle that "the decision of a trial court has the presumption of correctness and [that] the burden is on the appellant to demonstrate error." *Applegate v. Barnett Bank of Tallahassee*, 377 So. 2d 1150, 1152 (Fla. 1979). As discussed in Issue I of this Answer Brief, Appellant has submitted a slew of aphoristic-sounding arguments with either no citation to any authority or a citation to fabricated authority. (E.g., "Where an action proceeds on an incorrect jurisdictional premise or includes a plaintiff that lacked capacity to sue, the resulting judgment cannot stand."

² A review of the Record on Appeal confirms Appellant's predilection for lengthy, voluminous, and repetitive filings.

(I.B. 42).) It is not Appellee's burden to rework Appellant's arguments so that they are intelligible or to find support for Appellant's aphorisms.

**B. THE RECORD ON APPEAL IS INADEQUATE TO REVIEW
THE TRIAL COURT'S FINDINGS OF FACT**

This argument is relevant to Appellant's "Points" I (I.B. 28), II (I.B. 35), V (I.B. 47), VI (I.B. 50), VII (I.B. 52), VIII (I.B. 55), IX (I.B. 57), X (I.B. 60), and XIII (I.B. 72).

At a minimum, Appellant must "ensure that an adequate record to resolve the issues raised on appeal is provided to the appellate court." *Cyrus v. Cyrus*, 324 So. 3d at 591 (citing *Morgan v. Pake*, 611 So. 2d 1315, 1316 (Fla. 1st DCA 1993); Fla. R. App. P. 9.200(e)). Usually, the Appellant will provide a transcript of the proceedings, but Fla. R. App. P. 9.200(b)(5) also allows a party to "prepare a statement of the evidence or proceedings from the best available means, including the party's recollection." In this case, Appellant has done neither.

Appellant's Initial Brief repeatedly claims that the evidence was insufficient for the trial court to rule as it did. (E.g., "Findings of fact must be supported by competent, substantial evidence, not by

internal logic drawn from advocacy documents.” (I.B. 51–52)) Each of the trial court’s findings of fact, however, relies on trial testimony. *See* (R. 4225–28). The substance of that testimony is not present in the Record on Appeal and is not reviewable by this Court.

This Court has held, “Decisions of the trial court come to this court clothed in a presumption of correctness.” *Morgan v. Pake*, 611 So. 2d at 1316. If there is no transcript of the hearing and the parties do not file a stipulated statement of the evidence, then “the sufficiency of any testamentary evidence to support the trial court’s findings on underlying factual issues is not before [the Court] for review.” *Baxter v. Baxter*, 397 So. 3d 826, 828 (Fla. 1st DCA 2024). In such circumstances, the Court reviews “only for errors of law apparent on the face of the order in light of the documentary record.” *Id.*

In the case at bar, there is no legal error apparent in the Final Judgment. The Final Judgment relies heavily on trial testimony, which, because of Appellant’s failure to provide a transcript of trial proceedings, is not under appellate review. *See* (R. 4225–28). The Final Judgment then applies the law to those factual findings in sound and unsurprising ways. *See* (R. 4228–31).

The Appellant has not provided the requisite record for appellate review, and the Court, therefore, must maintain the “presumption of correctness” and affirm the trial court’s factual findings. *Morgan v. Pake*, 611 So. 2d at 1316.

ISSUE III

APPELLANT WAS NOT DENIED DUE PROCESS

A. APPELLANT WAS NEVER IMPROPERLY DENIED INDIGENT STATUS

1. Procedure for Determining Civil Indigency

Without citing to the Record on Appeal, Appellant claims that he “submitted a verified application for indigency,” which the trial court improperly denied. (I.B. 44). Appellant distinguishes this “verified application” from the Application for Determination of Civil Indigent Status, which was granted for the purposes of appeal. *See id.*; (R. 4387). Without the benefit of Appellant’s citation to the Record on Appeal, it seems he is referring to “Defendant’s Motion to Enforce By-Laws and for Relief from Mediation Costs,” filed March 26, 2025 (the “Motion for Relief”). (R. 2059). The Motion for Relief prayed, *inter alia*, for the court to “waive or shift the costs of mediation.” *Id.*

Florida law allows for indigent parties in judicial proceedings to receive the services of the courts “despite his or her present inability to pay for these services.” Fla. Stat. § 57.081(1). The procedure to determine civil indigent status and seek relief from prepayment of the costs of mediation is to “apply to the clerk of the court for a determination of civil indigent status using an application form developed by the Florida Clerks of Court Operations Corporation with final approval by the Supreme Court.” Fla. Stat. § 57.082(1). That form must comply with the minimum requirements set forth in Section 57.082(1)(a), which call for detailed financial information.

Appellant was aware of this statute because he cited the statute in his attachment to the Motion for Relief: “*As per Florida Statutes § 57.082*, a person is considered indigent if his or her income is equal to or below 200% of the current federal poverty guidelines, or in this case \$2608.33 monthly.” (R. 2070)(emphasis added). Nevertheless, Appellant did not submit the application required by Florida law. Instead, he attached a statement³ to the Motion for Relief, but the statement is facially insufficient and does not comply with the

³ Appellant refers to this statement as an “affidavit,” though it is not notarized.

requirements of Section 57.082. This Court has previously upheld a circuit court's denial of indigent status when the appellant failed "to provide an affidavit." *Stanley v. Berry*, 933 So. 2d 1219, 1220 (Fla. 1st DCA 2006). The Court should do so again.

2. Issue Not Preserved

Appellant's indigency status is not just a question of bureaucratic technicalities. By statute, it is the *clerk* who initially determines indigency, not the trial court: "The clerk of court shall determine whether an applicant seeking such designation is indigent based upon the information provided in the application and the criteria prescribed in this subsection." Fla. Stat. § 57.082(2). The Legislature has designated the trial court not as the first arbiter of indigency but as the check on and reviewer of the clerk's initial determination: "*If the clerk of court determines that the applicant is not indigent and the applicant seeks review of the clerk's determination, the court shall make a final determination of indigent status by reviewing the information provided in the application against the criteria prescribed*" by statute. Fla. Stat. § 57.082(4)(a) (emphasis added).

Because the clerk of court never made the initial determination and the trial court never reviewed that determination pursuant to Section 57.082(4), the issue is not preserved for appeal. *See Walker v. McDonough*, 967 So. 2d 1134, 1135 (Fla. 2nd DCA 2007) (affirming the trial court's decision because appellant did not seek review of the clerk's denial of indigent status and "there is no indication that the trial court ever undertook the review envisioned by section 57.082(4).").

3. Testimony Regarding Indigency

Assuming *arguendo* that the issue is preserved, Appellant claims that "the trial court denied indigency without conducting an evidentiary hearing or making findings addressing Appellant's current financial condition." (I.B. 44). To the contrary, the trial court did consider Appellant's sworn testimony during the Case Management Conference concerning his financial status and issued an order regarding the same. *See* "Order on Case Management Conference" (R. 2346–48) ("The Defendant was placed under oath by the Court. Under oath, Defendant asserted lack of income, issues with leaving his house and animals, and health concerns as reasons he could not appear in-person.").

Before sanctioning Appellant, the trial court also considered testimony from Appellees, that the witness, Rustin Howard, had visited Appellant's home approximately 13 years prior. Howard testified that Appellant lives in a villa in the wine district of Provence, France; that the home itself was large and historic; that the rooms of Appellant's home were furnished with "antique furniture, original paintings, antique tapestries, Renaissance era statues, and fine draperies." (R. 3656-57). In short, the trial court heard sworn testimony that Appellant had significant assets—more than sufficient to pay a deposit for mediation and to travel to Florida for the pretrial conference and trial. Appellant also undermined his credibility with the trial court by arguing (graphically (R. 2940) that his health prevented him from travelling to the United States, but then said he would be willing to make the trip if Plaintiffs bore the cost. (R. 3654).

And again, Appellant has not included transcripts of any of this testimony in the Record, and, therefore, the trial court's factual findings are not before this Court for review. *See Baxter v. Baxter*, 397 So. 3d at 828.

**B. THE TRIAL COURT DID NOT ABUSE ITS DISCRETION IN
SANCTIONING APPELLANT FOR FAILING TO ATTEND
MEDIATION OR THE PRETRIAL CONFERENCE**

The trial court's order for the parties to attend mediation and appear in person and the court's decision to sanction Appellant are both reviewed for abuse of discretion. *See F.D. v. Dep't of Children & Families*, 413 So. 3d 994, 995 n.1 (Fla. 3d DCA 2025) ("We review the denial of a motion to permit appearance by audio-video communication technology for abuse of discretion."); *Baker v. Myers Tractor Services, Inc.*, 765 So. 2d 149, 150 (Fla. 1st DCA 2000) ("We review a trial court's imposition of sanctions under an abuse of discretion standard of review.").

For a reversal of these orders to be justified, "it would have to be shown on appeal that the trial court clearly erred in its interpretation of the facts and the use of its judgment and not merely that the court, or another fact-finder, might have made a different factual determination." *Id.* at 150 (citing *Mercer v. Raine*, 443 So. 2d 944, 946 (Fla. 1983)).

1. The order to attend mediation

The court was well within its authority to order the parties to participate in mediation. *See Fla. R. Civ. P. 1.700(a)* ("Except as hereinafter provided or as otherwise prohibited by law, the presiding

judge may enter an order referring all or any part of a contested civil matter to mediation or arbitration.”). In its order on April 3, 2025, the trial court allowed the parties to attend mediation by “Zoom.” (R. 2347, 2349–50). The trial court advised both parties that a “failure to appear/advance the costs necessary to participate” in mediation could lead to possible sanctions, including striking pleadings “and the entry of a default.” (R. 2347).

In its April 17, 2025 “Order to Appear for Mediation or Order to Show Cause,” the trial court found that Appellant’s repeated objections to the mediation requirement were purely financial, but that Appellant had “not offered an alternative certified circuit court mediator who does not require a deposit in advance.” (R. 2533). As discussed *supra*, there is a process for seeking relief from mediation costs, but Appellant did not avail himself of that process. See Fla. Stat. §§ 57.081; 57.082.

2. The order to attend pretrial conference

At the case management conference on April 3, 2025, the trial court was confronted with a case that was seven years old, had traveled through state court, then federal district court, then federal circuit court, then back to state court; that had over a dozen claims

and counterclaims; that included oil and gas patents; and that involved hundreds of pages of exhibits. (R. 3653–59). Additionally, Appellant’s residence was seven time zones ahead of the trial court’s. (R. 3656). For these stated reasons, in the June 3, 2025, “Order Denying Defendant’s Request for Continuation of Bench Trial and Denying Request for Zoom Appearance at the Pretrial Conference and Trial,” the trial court held “that allowing the Pretrial Conference and Judge Trial to be conducted by Zoom would create an administrative burden on the Court and would fundamentally alter the nature of the proceedings.” (R. 2997).

Appellant raised an alleged inability travel to the pretrial conference due to Appellant’s health. (R. 2995–96). (These objections were irrelevant to the order to participate in mediation by Zoom.) Appellant, however, testified under oath⁴ “that if Plaintiff was required to pay his costs to come to the U.S., [Appellant] would appear in person.” (R. 2995). The trial court decided correctly,

⁴ Again, Appellant has not provided a transcript of the case management conference, and the trial court’s findings of fact are not before this Court for review. See *Baxter v. Baxter*, 397 So. 3d at 828.

therefore, that Appellant was not medically prevented from travelling to Florida.

3. No abuse of discretion

The trial court did not “clearly err in its interpretation of the facts and the use of its judgment,” and, therefore, the trial court did not abuse its discretion. *Baker v. Myers Tractor Services, Inc.*, 765 So. 2d at 150. The trial court was well within its authority to order mediation, and Appellant did not follow the procedure to obtain a declaration of civil indigent status for relief of the cost of mediation. See Fla. Stat. §§ 57.081; 57.082. Appellant did not propose a mediator who would accept an appointment without a deposit. (R. 2533). To the extent that Appellant offered testimony to the trial court that Appellant could not afford to pay for mediation, his testimony was contradicted by Rustin Howard’s. (R. 3656–57).

In requiring the parties to appear in person for the pretrial conference, it is self-evidently true that the trial court did not “clearly err in its interpretation of the facts.” *Baker v. Myers Tractor Services, Inc.*, 765 So. 2d at 150. The court’s decision to require in-person attendance was based primarily on the case’s procedural history, complexity, and the difference in time zones. When appellate courts

have found an abuse of discretion for requiring parties to appear in person, it has been because the trial court, for example, terminated parental rights without making a further inquiry after the father said he could not afford to appear in person. *See F.M. v. Dep't of Child. & Fams.*, 95 So. 3d 378 (Fla. 3d DCA 2012). That is not the case here, where the trial court did make an inquiry into Appellant's ability to pay by hearing sworn testimony from Appellant (in denying Appellant's motion for a remote appearance) and from Rustin Howard (in ordering sanctions against Appellant). (R. 3656–57).

Likewise, the trial court did not abuse its discretion in sanctioning Appellant. As the Florida Supreme Court explained, “We agree that the striking of pleadings or entering a default for noncompliance with an order...is the most severe of all sanctions which should be employed only in extreme circumstances. A deliberate and contumacious disregard of the court's authority will justify application of this severest of sanctions.” *Mercer v. Raine*, 443 So. 2d at 946 (internal citations omitted). The trial court gave Appellant advance warning of the possible sanctions and afforded Appellant multiple opportunities to comply with the court's orders, but Appellant flouted the trial court's authority.

Additionally, in a case such as this where the transcripts of the testimony are not before the Court and the trial court was exercising discretionary authority, the trial court should be afforded significant deference:

In reviewing a true discretionary act, the appellate court must fully recognize the superior vantage point of the trial judge and should apply the “reasonableness” test to determine whether the trial judge abused his discretion. If reasonable men could differ as to the propriety of the action taken by the trial court, then the action is not unreasonable and there can be no finding of an abuse of discretion. The discretionary ruling of the trial judge should be disturbed only when his decision fails to satisfy this test of reasonableness.

Id. at 946 (quoting *Canakaris v. Canakaris*, 382 So. 2d 1197, 1203 (Fla. 1980)). Reasonable jurists may come to different conclusions about the necessity of an in-person hearing or to what extent Appellant should be sanctioned for willful disobedience of the court’s orders. But the trial court’s decisions were well within the bounds of what that court’s reasonable discretion permits, and, therefore, those rulings ought to be affirmed.

CONCLUSION

Appellant has submitted his Initial Brief in bad faith. It is rife with fictions both in fact and law, and Appellees ask the Court to exercise its authority to sanction Appellant accordingly.

Appellant has failed to submit any transcripts of any of the relevant proceedings, and the Court's ability to review the trial court's factual findings are extremely limited.

Last, Appellant was not denied due process. Appellant was never denied civil indigent status, because he did not submit an Application for Determination of Civil Indigent Status until Appellant filed for appeal. Moreover, his complaint of indigency was heard at an evidentiary hearing and contradicted by the sworn testimony of Rustin Howard. The trial court did not abuse its discretion in ordering mediation, in ordering the parties' presence at the pretrial conference, or in its decision to sanction Appellant. The trial court had a reasonable and documented rationale for each of those decisions, and the trial court so ruled only after considering Appellant's sworn testimony, the record, and testimony from Appellees' witness.

In sum, the Final Judgment of the trial court should be affirmed.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was served via email to: Marc M. Moszkowski, *pro se*, at m.moszkowski@deepgulf.net.



Braden K. Ball, Jr.
Florida Bar No. 89000
Michael L. Wyatt
Florida Bar No. 124284
LITVAK BEASLEY WILSON & BALL, LLP
40 Palafox Place
Suite 300
Pensacola, FL 32502
Phone: (850) 432-9818
Fax: (850) 432-9830
Emails: braden@lawpensacola.com
michael@lawpensacola.com
mandrews@lawpensacola.com
BKBEService@lawpensacola.com

COUNSEL FOR APPELLEES

CERTIFICATE OF COMPLIANCE

I hereby certify that this Answer Brief complies with the font and word limit requirements of Fla. R. App. P. 9.045 and 9.210. This Answer Brief is written in Bookman Old Style 14-point font. The word-processing application used to prepare this Answer Brief tallies the word count at 6581 words.



Braden K. Ball, Jr.
Florida Bar No. 89000
Michael L. Wyatt
Florida Bar No. 124284
LITVAK BEASLEY WILSON & BALL, LLP
40 Palafox Place
Suite 300
Pensacola, FL 32502
Phone: (850) 432-9818
Fax: (850) 432-9830
Emails: braden@lawpensacola.com
michael@lawpensacola.com
mandrews@lawpensacola.com
BKBEService@lawpensacola.com

COUNSEL FOR APPELLEES